Checklist

Before you file the attached application with the Landlord and Tenant Board, make sure you can answer **YES** to each of the following questions. If not, your application to the LTB may be dismissed, which means you may have to start over.

☐ **Did you give the tenant an N4 notice?**

You cannot file this application unless you gave the tenant a *Notice to End your Tenancy Early for Non-payment of Rent (N4 notice)*.

☐ **Are you applying after the termination date on the N4 notice?**

You cannot file this application until the day after the termination date in the *Notice to End a Tenancy Early for Non-payment of Rent (N4 notice)*.

☐ **Is the tenant still in possession of the rental unit?**

You cannot file this application if the tenant is no longer in possession of the rental unit.

☐ **Have you included a copy of the N4 notice and a Certificate of Service for that notice with your application?**

You must include a copy of these two documents when you file your application; if you do not, your application will not be accepted. Be sure to keep copies of these documents for your records.

☐ **Did you name each tenant in possession of the rental unit?**

The tenant or tenants that you name in this application should be the same people you named on the N4 notice that you served.

☐ **Did you fill in the complete address of the rental unit?**

You must provide the full address, including the postal code. Be sure you have correctly identified the rental unit.

☐ **Did you check your math?**

Make sure you have correctly calculated the total amounts owing in the two tables in Part 5 (Rent Owing and NSF Cheque Charges). Check the calculation across the rows of each table and then check the total amounts in the final columns.

Also check to be sure that the amount in the box on page 1 matches the total amount owing in Part 6.

☐ **Did you date and sign the application on page 6?**

If your application is not signed and dated, the LTB will not accept it.

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Important Information for Landlords

Use this form to apply for an order to **end a tenancy** and **evict a tenant** after you give the tenant an *N4 Notice to End Your Tenancy for Non-payment of Rent*. Instructions for Form L1 are available on the LTB's website at tribunalsontario.ca/LTB.

1. Complete all seven parts of this application.
   - **Part 1** asks for information about the address of the rental unit covered by this application.
   - **Part 2** requires you to fill in the total amount you believe the tenant owes you.
   - **Part 3** asks for general information about:
     - you (your name, etc),
     - the tenants in possession of the rental unit.
   - **Part 4** requires you to:
     - select the reason(s) for your application to the LTB,
     - provide information about the tenant's rent, the rent deposit and whether or not the tenant is still in possession of the rental unit.
   - **Part 5** asks you to show how you calculated the amount the tenant may owe you.
   - **Part 6** asks you to provide information about the total amount you believe the tenant owes you.
   - **Part 7** requires your signature or that of your representative, and, if you are being represented, your representative's contact information.

2. Complete the checklist that is attached to the application to make sure you have completed the application form correctly. Do not include the checklist when you file the application.

3. File all pages of the application (not including this page) with the LTB along with a copy of the *N4 Notice to End Your Tenancy for Non-payment of Rent* you gave the tenant. Also file a *Certificate of Service* showing how and when you served the tenant the *N4 Notice*. The LTB will send you a *Notice of Hearing* showing the time and location of your hearing.

4. Pay the application fee of **$201** to the LTB at the same time as you file the application (or **$186 if you use the Tribunals Ontario Portal**). The LTB will not process your application unless you pay the fee. If you mail or courier the application, you can pay the filing fee by money order, certified cheque, or by credit card. You can't pay with cash or debit card if you file by mail or courier. If you cannot afford the fee, you can submit a Fee Waiver Request.

5. Contact the LTB if you have any questions or need more information.

   416-645-8080
   1-888-332-3234 (toll free)
   tribunalsontario.ca/LTB

Tribunals Ontario
Landlord and Tenant Board

Application to Evict a Tenant for Non-payment of Rent and to Collect Rent the Tenant Owes

Form L1

Disponible en français

Language Preference

The LTB offers services in both French and English.

What is your preferred language? ◯ French ◯ English

If you are the respondent and want French Language Services, complete the Request for French Language Services form and email it to LTB@ontario.ca, or send the form by mail to the LTB. To see the list of all LTB office addresses, visit tribunalsontario.ca/ltb/contact/.

Accommodation

Accommodations are arrangements to allow everyone, regardless of their abilities, to participate fully in the LTB's process.

If you require accommodation, complete the Accommodation Request form and email it to LTB@ontario.ca, or send the form by mail to the LTB. To see the list of all LTB office addresses, visit tribunalsontario.ca/ltb/contact/.

Part 1: Address of the Rental Unit Covered by This Application

Street Number:	Street Name:	Unit/Apt./Suite:

Municipality (City, Town, etc.):	Province:	Postal Code:
	ON	

Part 2: Total Amount the Tenant Owes

The following information is from your landlord

I am applying to the Landlord and Tenant Board for an order:

- **to evict you because you owe rent, and**
- **to collect the money you owe me.**

I believe that you owe me a total of $ _____ **as of** _____ (dd/mm/yyyy).

This amount includes the filing fee for this application. You may also owe me any new rent that comes due after I file this application. To see how I calculated this amount, go to page 6.

The following information is from the Landlord and Tenant Board

IF YOU AGREE with the amount the landlord claims you owe:

If you agree with the amount the landlord claims you owe, you can pay everything you owe or work out a payment plan. However, read the options before you decide. You may want to get legal advice first.

OPTION 1: Pay everything you owe

If you pay all the rent you owe plus the landlord's filing fee before the LTB issues an order about this application, the landlord will not be able to evict you for not paying the rent.

The amount you have to pay includes:

- the amount set out above that the landlord is claiming in this application, plus
- any new rent that has come due after the landlord filed this application.

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You can pay these amounts to the landlord directly, or to the LTB in trust. Be sure to get a receipt for any amounts you pay to the landlord.

Go to the hearing, where you can tell the LTB what you've paid. If the landlord gave you receipts for amounts you paid, bring them to the hearing.

OPTION 2: Work out a payment plan

If you cannot pay everything you owe right now, you can talk to your landlord to see if they are willing to work out a payment plan.

If you and the landlord agree to a payment plan:

- Go to the hearing where you can explain the payment plan to the LTB, or
- Fill out the LTB's Payment Agreement form (tribunalsontario.ca/documents/ltb/Other Forms/Payment Agreement.pdf) if you want the LTB to issue an order without holding a hearing, and file the completed form with the LTB before the hearing. The *Payment Agreement* form must be signed by you and your landlord or the landlord's representative.

If you or your landlord files the *Payment Agreement* form with the LTB before the hearing, the LTB can issue a consent order without holding a hearing. The consent order will be based on the payment plan set out in the *Payment Agreement* form.

If the LTB issues the consent order, you will not have to go to the hearing. However, if the LTB has not issued a consent order by the date of the hearing, go to the hearing.

If you and the landlord want to work out a payment plan but cannot agree on the terms of the agreement, an LTB Dispute Resolution Officer can help by providing mediation services. If you and the landlord agree to mediation services, contact the LTB by email at LTB@ontario.ca or access your file on the Tribunals Ontario Portal (tribunalsontario.ca/ltb/tribunals-ontario-portal/), select the Online Dispute Resolution (ODR) tab, then select ***Request for Mediation***. Requests for mediation should be made at least two weeks before your hearing.

IF YOU DO NOT AGREE with the amount the landlord claims you owe:

Talk to your landlord to see if both of you can agree on a different amount. You may want to get legal advice first.

If you and your landlord agree on a different amount

If you and your landlord can agree on the amount you owe, read the options above called **Pay everything you owe** and **Work out a payment plan**. You can follow one of these options, but use the different amount you and your landlord have agreed on. Go to the hearing unless the LTB has issued a consent order based on a *Payment Agreement*.

If you and your landlord do not agree on a different amount

If you and your landlord cannot agree on the amount you owe, go to the hearing, and, at the hearing, explain why you disagree with the amount the landlord claims you owe. If the LTB decides that you owe money, you can ask for more time to pay it.

Go to the hearing

As described in this form, there are different options for dealing with the claims your landlord made in this application depending on whether or not you agree with the amount the landlord claims you owe. However, whatever you choose to do, it is important to participate in the hearing. The date, time and hearing method are shown on the Notice of Hearing that is attached to this application. (Exception: you do not have to attend the hearing if, before the hearing date, the LTB issues a consent order based on a *Payment Agreement* form - however, if you and your landlord filled out the *Payment Agreement* form and you haven't received the consent order by the hearing date, go to the hearing.)

At the hearing, the landlord will have to prove the claims they made in the application and the *Notice to End your Tenancy*. You will have an opportunity to respond to the landlord's application. For example, you can explain why you disagree with the amount the landlord claimed you owe, or explain why you think you should not be evicted. You can also ask the LTB for more time to pay the money you owe. If you have paid everything you owe before the hearing, or if you and your landlord have worked out a payment plan, you can tell the LTB at the hearing.

At the hearing, you can also raise other issues such as maintenance problems or harassment. If you plan to raise other issues, you must:

- give the landlord and the LTB a written description of each issue at least **seven** days before the hearing, and
- pay the **landlord** at least half of any rent arrears that are claimed in the landlord's application at least **seven** days before the hearing. **You cannot pay this amount to the LTB in trust.** Be sure to get a receipt for any amounts you pay to the landlord.

If you intend to raise other issues at the hearing, you can use the LTB form "Issues a Tenant Intends to Raise at a Rent Arrears Hearing" which is on the LTB website (tribunalsontario.ca/ltb/forms-filing-and-fees/). Include details such as a description of the issue, when it began, and when you told your landlord.

You must also give a copy of all your evidence to support your case to the landlord and the LTB at least seven days before the hearing. If the LTB accepts your evidence, the LTB may order the landlord to things like repair damage or pay you money. If you owe arrears of rent, this may reduce the amount you owe.

After the hearing

The LTB will make a decision and issue an order that will be sent to you by mail. The order will tell you what the LTB decided, including what you have to pay. You should read the order to be sure it is correct and that you understand it.

For more information:

You can contact the Landlord and Tenant Board at **416-645-8080** or toll-free at **1-888-332-3234** or visit the LTB's website at tribunalsontario.ca/LTB.

OFFICE USE ONLY

File Number:

Read the instructions carefully before completing this form. Print or type in capital letters.

Part 3: General Information

Landlord's Name and Address

If there is more than 1 landlord, complete a *Schedule of Parties* form and file it with this application.

First Name:	Last Name:

Company Name (if applicable):

Email Address:	Phone Number:

Mailing Address

Street Number:	Street Name:	Unit/Apt./Suite:

Municipality (City, Town, etc.):	Province:	Postal Code:

What is the best way to communicate with you? ◯ Mail ◯ Email *

* If you check Email, you consent to receive documents and correspondence from the Landlord and Tenant Board by email. Providing consent to email means that the LTB will communicate and send documents by email to all of the applicants. Do not check the Email box if there are multiple applicants and some want to receive documents by regular mail instead of email.

Tenant Names and Address

If there are more than 2 tenants, complete a *Schedule of Parties* form and file it with this application.

Tenant 1 First Name:	Tenant 1 Last Name:

Tenant 1 Email Address:	Tenant 1 Phone Number:

Tenant 2 First Name:	Tenant 2 Last Name:

Tenant 2 Email Address:	Tenant 2 Phone Number:

Mailing Address (if it is different from the address of the rental unit)

Street Number:	Street Name:	Unit/Apt./Suite:

Municipality (City, Town, etc.):	Province:	Postal Code:

Part 4: Reasons for your Application

Check the box next to each reason on which you based this application.

I am applying for an order to end the tenancy and evict the tenant and to collect:

☐ the rent the tenant owes me up to the date they move out of the rental unit, and

☐ an amount for charges related to NSF cheques the tenant gave me.

The tenant must be in possession of the rental unit when you file this application. Shade the circle completely to answer whether or not the tenant is still in possession of the rental unit on the date you file this application.

◯ Yes ◯ No If you answer no, you cannot file this application.

Shade the circle completely to show whether the tenant is required to pay rent by the:

◯ month ◯ week ◯ other (specify): _____

The amount of rent currently on deposit: $ _____

The date the rent deposit was collected: _____ *(dd/mm/yyyy)*

The last rental period for which the tenant was paid interest on the rent deposit: _____ *(dd/mm/yyyy)* **to** _____ *(dd/mm/yyyy)*

Part 5: Details of the Landlord's Claim

Section 1. Rent Owing

I have calculated the amount of rent the tenant owes me as follows:

Rent Period From: *(dd/mm/yyyy)*	Rent Period To: *(dd/mm/yyyy)*	Rent Charged $	Rent Paid $	Rent Owing $
			Total Rent Owing:	$

Section 2. NSF Cheque Charges

Fill in the table below if you are applying to collect money from the tenant because you had bank or administration charges for NSF cheques the tenant gave you.

I have calculated the amount of NSF bank charges and my related administration charges the tenant owes me as follows:

Cheque Amount $	Date of Cheque *(dd/mm/yyyy)*	Date NSF Charge Incurred *(dd/mm/yyyy)*	Bank Charge for NSF Cheque $	Landlord's Administration Charge $	Total Charge $
				Total NSF Related Charges Owing:	$

Attach additional sheets if necessary.

Part 6: Total Amount Owing

Total rent owing:
(from Part 5, Section 1) $ _____

Total NSF cheque related charges owing:
(from Part 5, Section 2) $ _____

Application Fee: $ _____

Total: **$** _____

Part 7: Signature

Landlord / Representative's Signature

Signature	Date *(dd/mm/yyyy)*

Who has signed the application? Shade the circle next to your answer.

◯ Landlord ◯ Legal Representative

Information About the Legal Representative

First Name:	Last Name:

Law Society Number:	Company Name (if applicable):

Email Address (The LTB will use this email address to communicate with you):

Day Phone Number:	Evening Phone Number:

Mailing Address

Street Number:	Street Name:	Unit/Apt./Suite:

Municipality (City, Town, etc.):	Province:	Postal Code:

Collecting Personal Information

The Landlord and Tenant Board has the right to collect the information requested on this form to resolve your application under section 185 of the *Residential Tenancies Act, 2006*. After you file the form, all information related to the proceeding may become publicly available in a tribunal decision, order or other document, in accordance with Tribunals Ontario's Access to Records Policy and the *Tribunal Adjudicative Records Act, 2019*. Parties wanting records or information to remain confidential must seek a confidentiality order from the adjudicator. If you have questions about confidentiality orders or access to records, please contact us by email at LTB@ontario.ca or our Contact Center at **416-645-8080** or **1-888-332-3234** (toll free).

Important Information from the Landlord and Tenant Board

1. It is an offence under the *Residential Tenancies Act, 2006* to file false or misleading information with the Landlord and Tenant Board.
2. The LTB can order either the landlord or the tenant to pay the other's costs related to the application.
3. The LTB has *Rules of Practice* that set out rules related to the application process and *Interpretation Guidelines* that explain how the LTB might decide specific issues that could come up in an application. You can read the *Rules* and *Guidelines* on the LTB's website at tribunalsontario.ca/LTB or you can buy a copy from a LTB office.

OFFICE USE ONLY:

Delivery Method: ◯ In Person ◯ Mail ◯ Courier ◯ Email ◯ Service Ontario Center FL: _____

Ontario

Tribunals Ontario

Landlord and Tenant Board

Payment Information Form

Disponible en français

Payment Method

Select how you are paying the application fee:

☐ Money Order ☐ Certified Cheque

Money orders and certified cheques must be made payable to the "Minister of Finance".

☐ Credit Card

If you are paying by credit card and filing your application by mail or courier, you must complete the Credit Card Payment Form and submit it with your application.

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